

The UK's post-study work visa: Abolition and reinstatement of a degree mobility incentive

Policy Futures in Education
2025, Vol. 23(1) 144–154
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DOI: 10.1177/14782103241240613
journals.sagepub.com/home/pfe



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Abstract

This paper examines the 2012 abolition of the Post-Study Work visa for international students in English and Welsh Universities and its subsequent re-establishment in 2021. A policy cycle analysis was performed of the phases of agenda setting, formulation, implementation, and evaluation. This revealed that the UK government abolished the PSW visa in 2012 because of national security concerns and perceived public opposition to immigration, but minimised the role of higher education institutions and failed to consider economic and cultural drivers when setting the policy agenda. The impact of the subsequent top-down approach to implementation led to a range of negative outcomes for HEIs and their contribution to the UK economy. Subsequently, bottom-up pressure led to the UK government re-establishing the PSW visa for economic reasons, political reasons (Brexit), and in response to the impact of the COVID-19 pandemic.

Keywords

The UK's post-study work visa: abolition and reinstatement of a degree mobility incentive, The UK's post-study work visa, policy in higher education, post study work visa in the UK, UK visa and Covid 19, the graduate route UK

Introduction

Although international students contribute significantly to the income of higher education institutions (HEIs) in the UK and other Western economies (MAC, 2018a), their worth to the UK alone is estimated at £28.8 billion (Hillman, 2021). The UK Government Home Office controls their access to English and Welsh HEIs through its immigration policy, limiting their right to work and access to state benefits, and by determining who receives subsidised education through home fees or state scholarships (Sovic, 2013). The UK is a prime destination for international students, with home students benefiting from the global perspectives, intercultural

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skills, and knowledge they bring from other parts of the world. However, in 2010, the newly elected coalition government responded to perceived public pressure to limit inward migration after the independent Migration Advisory Committee (MAC, 2018a) reported that the largest proportion of immigrants were international students. At this time, the ability to obtain a Post-Study Work (PSW) Visa was attracting thousands of international students to the UK as it allowed them to stay and work for 2 years after graduation. This was arguably beneficial for the UK economy, as it attracted a talented and skilled international workforce. However, in response to perceived public sentiment and national security concerns about international students abusing the UK immigration system, in 2012 the then Home Secretary, Theresa May, made the controversial decision to end the (PSW) visa as part of the UK government's plan to reduce net inward migration (MAC, 2018b). This article explores the rationale for this policy shift, which placed English and Welsh HEIs at a substantial disadvantage in the competition for international students in comparison with rival destination countries with more generous visa regimes. The paper also illuminates how and why this policy was reversed to reinstate the PSW visa in 2021.

Analytical frame

This paper adopts Fischer and Miller's (2006) adaptation of Lasswell's policy cycle model (1956) as its analytical frame by dividing the analysis into the five phases of agenda setting, policy formulation, decision making, implementation, and evaluation. This model has been successfully applied in policy studies and focuses on generic features of the policy process rather than specific actors or institutions, or substantial problems and respective programmes.

Methodology

This study adopted a document analysis approach (Bowen, 2009), comprising an online search for relevant UK government policy documents (including the Hansard record of parliamentary speeches) over the period 2011–2021 using the search term 'post-study work visa', followed by a content analysis using the conceptual framework proposed by Taylor et al. (1997) which examines the policy context, text, and consequences. Each policy document and Hansard quote was coded using categories derived from Fischer and Miller's (2006) adaptation, which included categories such as 'top-down' and 'bottom-up' for the implementation phase of the successive policy shifts.

While the research was being conducted, more than 60 documents were researched such as news articles, government white papers, and debates. The materials were finalised depending on their relevancy and post-study rules on visas. Conclusively, the categories taken from Fischer and Miller's (2006) adaptation were used in every situation. Document analysis was conducted with a focus on the UK Government's policy papers relating to the Post Study Work Visa Scheme from 2011 to 2022. This is one of the data analysis methods employed for the present research. A total of 62 relevant documents, including news articles, white papers, government studies, and parliamentary debates, were found in an online search. A conceptual framework developed by Taylor et al. 1997 has been used for the content analysis. This examines language, context, and results of policies. The categories obtained from the adaptation of Fischer and Miller of the year 2006 included quotations of top-down and bottom-up for the phase of implementation used to divide every document.

This study also includes theoretical frameworks such as Fischer and Miller's Political Design Framework and Ingram's Policy Model to recognize the stages of agenda formation, policy development, and implementation. An examination of the language, context, and results of the policy is also incorporated in the present research. By making use of the categories obtained from [Fischer and Miller's \(2006\)](#) adaption, which included 'top-down' and 'bottom-up' for implementation phases, every document and Hansard quotation was divided. Primarily, the focus of the research is on three stages of the development of policy such as the time after the general election of 2010, the stage of implementation of policy, agenda setting, and finally addressing issues of security concerns and public opinion. This approach provides a full understanding of the evolution and consequences of United Kingdom post-study work visa legislation when all is finished.

The first stage in Fischer and Miller's model is agenda-setting, where problems and potential solutions are ruminated upon by the government and come to the attention of the public. [Birkland \(2007\)](#) referred to agenda-setting as a series of problems accompanied by the understanding of causes, symbols, or solutions. These can be as precise as an act before a parliament or as vague as a series of assumptions and beliefs about a possible problem and what ought to be done by governments, the public, and other bodies. Actors within and outside government constantly seek to influence and collectively shape the agenda, resulting in choices having to be made between diverse and competing priorities ([Fischer and Miller, 2006](#)). [Wolf et al. \(2013\)](#) contends that agenda-setting in terms of the policy process is fundamentally concerned with the attention dynamics taking place at the level of the political system.

The agenda-setting phase of the 2012 abolition of PSW visas in the UK arguably dates back to the 11 September 2001 and 7 July 2005 terrorist attacks in New York and London, which raised security concerns about Islamic radicalisation among overseas students and postgraduate groups. Added to this, according to ([ILO, 2004](#)) there was growing public concern in some sectors of the UK population concerning economic migration from Eastern European countries that had joined the European Union in 2004 (Czechia, Estonia, Hungary, Latvia, Lithuania, Poland, Slovakia, and Slovenia). In response to the perception that some immigrants and institutions were fraudulently abusing the international student visa system, the UK Home Office introduced a new licencing system for HEIs in 2009 to replace the old system run by the Department of Innovation, Universities and Skills (DIUS). Before 2010, the previous Labour government had expanded the Graduate Science and Engineering (SEGS) programme in 2006 to allow all international students to remain for 12 months after completing postgraduate courses ([Beauvallet, 2014](#)). This programme had replaced Tier 1 (post-study work) in the points-based immigration system in 2008, but its core features allowed non-EU students to work in the UK after graduation, subject to increased security checks. Sponsoring institutions now had to be inspected and approved by the UK Border Agency (UKBA), which also approved organisations such as Accreditation UK for Language Centres and the British Accreditation Council for the independent further and higher education sector. A number of international postgraduate students became subject to a vetting regime to prevent countries on the UK's watch list from gaining access to technologies that could potentially be used in the development of nuclear, chemical, or biological weapons ([Sovic, 2013](#)). However, the primary aim of such policy shifts was to try to prevent international students from abusing the (PSW) visa system by engaging in unskilled work. The perceived failure of such initiatives to assuage public concern about overall inward migration and the part played in this by 'bogus' international students set the agenda for the abolition of the PSW visa.

The second stage, policy formulation, involves the definition of objectives, and the consideration of different alternatives for action. To formulate a policy and arrive at a final policy decision, a set of policy options to address a problem must be identified, refined, and narrowed down. According to

Cochran and Malone (2005), policy formulation addresses the ‘what’ questions: ‘What is the plan for dealing with the problem? What are the targets, and priorities, to achieve these goals? What options are available? What are the costs and benefits of each of the options? What are the positive and negative externalities associated with each alternative?’ Schneider and Ingram’s policy design framework (1997) draws on institutional and ideational theories, the stages model, and theories of decision making such as bounded rationality to explain why a policy has a particular design and how examination impacts its selection. The formulation of the policy to rescind the PSW visa began after the general election in 2010 with the new Prime Minister David Cameron’s pledge to reduce the number of immigrants who come to the UK, study for a short time, and then work in unskilled jobs (Office, C. (2013). In March 2011, Home Secretary Theresa May delivered the following statement to the UK House of Commons:

‘Mr Speaker, under the last government the student visa system became the symbol of a broken and abused immigration system. We want to attract only the best and the brightest to Britain. we are tightening up the system and tackling the abuse’.

(UK Government, 2011)

Her statement went on to outline proposals to further tighten the accreditation criteria for sponsoring organisations; establish tougher entry requirements concerning English language proficiency; end permission to work during term time; and, of most significance, close the PSW route from April 2012.

The third stage, policy implementation, refers to the deliberate conversion of policy plans into reality (Gerston, 2004). However, owing to numerous external factors, policies and their intentions at this stage are often revised, distorted, delayed, or even abandoned (Jann and Wegrich, 2003). The implementation stage is therefore the most crucial. Thus, interaction between different actors, government, institution, and society is essential in ensuring the effective functioning of policy implementation to avoid the consequences of bad policy design based on erroneous assumptions about cause-effect relationships (Pressman and Wildavsky, 1984).

Successful implementation of a policy requires a clear understanding of policy standards and objectives (Van Meter and Van Horn, 1975). However, the type of approach adopted depends on the nature of the policy and the task environment in which the policy is being implemented. Top-down implementation refers to a policy decision being carried out by statute, official order, or court decision; where authoritative decisions are ‘centrally located’ by actors who seek to produce the ‘desired effects’ (Matland, 1995: p. 146). It operates through the hierarchical and chronological path of a particular policy and is focused on clearly defined goals and objectives that need to be achieved to control policy implementation (Fischer and Miller, 2006). It is an approach that requires a clear mechanism from the government to the project that affects people; in other words, a command and control system is in place. It is thus the most rational and comprehensive approach to planning. The top-down approach starts with a policy decision and then examines the actions required for implementation (Sabatier, 1986). The latter is a function of government decisions, government management and oversight, and the resulting bureaucratic execution (Hill and Hupe, 2009). In such an approach, implementation is the ability to achieve predicted consequences after initial conditions have been met (Pressman and Wildavsky, 1973). By contrast, in a bottom-up approach, the formation of an implementation strategy begins with the target groups and those delivering the service (Matland, 1995: p. 146). Policy is thus viewed as an output of implementation that adapts to a service group’s needs, which involves everyday problem solving by ‘street-level bureaucrats’

(Lipsky, 1971). It begins by identifying the network of actors involved in service delivery and incorporates their goals and strategies into the policy making process (Hjern and Porter, 1981). If the top-down approach ensures policymakers have control of the process, the bottom-up approach aims for democratic control (deLeon, 1995).

Critical analysis of literature focused on implementation theories relevant to the PSW visa

This section provides a critical overview of the implementation theories drawn upon when abolishing and reinstating the PSW policy in the UK. This will serve as a foundation upon which to establish the requirements for successful implementation. The literature explains how each implementation stage was applied in England and Wales, and the fact that even though the definition of implementation remained the same, the way in which it was applied differed according to the environment, the decision-makers, and who had the ability to impact the decision-making process.

First, top-down implementation was applied when the UK decided to stop the PSW visa in 2012 for security reasons, and to prevent abuse of the immigration system by international students and unskilled workers. Secondly, bottom-up implementation was applied when the UK government reversed this decision and reinstated the policy. I selected these two approaches as they clarify the steps taken in the abolition and reinstatement of the PSW visa.

Top-down approach

In the top-down approach, planning was controlled and executed by the UK government without considering the role or opinions of higher education institutions. A key criticism of a top-down approach to policy implementation is that an analysis is often initiated using statutory language that ‘fails to consider the significance of actions taken earlier in the policy-making process’ (Matland, 1995: p. 147). Secondly, it ignores or eliminates the political aspects of implementation (Matland, 1995: p. 148), which may result in policy failure (Matland, 1995: p. 148). Finally, a top-down approach views those framing the statute ‘as key actors’, whereas it may be more appropriate to consider local officials and people impacted by the policy as the key actors. Furthermore, it neglects the strategic initiatives adopted by other policy subsystems (Hjern and Hull, 1982). There are a plethora of governmental directives and actors involved, including street-level bureaucrats or local officials. However, there may sometimes be a lack of interaction between actors, such as between the government and bodies concerned with meeting social demands. The failure to incorporate local actors into the policy-making process means a top-down approach is not conducive to examining such interactions, nor to examining the interactive effects between various policies. Indeed, this is what occurred when the UK government decided to abolish the PSW visa in 2012. They began the implementation with the decision-making process, rather than engaging in agenda setting which would have involved considering key voices such as universities which would have provided insights into the impact on their reputation, financial status, and international student recruitment, as well as the effect that implementing or abolishing the PSW visa would have on their employees.

Bottom-up approach

There have been two main criticisms of this approach. First, street-level bureaucrats are rarely held accountable to the public. For instance, local agents may purposefully subvert the policy goals of elected officials in order to achieve personal sub-goals (Matland, 1995: p. 150). Secondly, it ignores

the fact that a large number of policies are developed from a top-down approach that serves to reinforce top-down authority.

This can be applied to the decision made by the UK government to revise the abolition of the PSW visa and then reinstate it. First, evidence was collected from different educational institutions in the UK and how the abolition of the PSW visa had affected them socially and financially, as well as the impact on their employees, given the failure to recruit international students. Secondly, the effect of the abolition in the years following the Brexit decision was also evaluated. Together, these assessments indicated that the decision to abolish the PSW visa was erroneous and had to be reversed. This was a process that commenced in 2018 with a process of consultation with HE institutions. According to the Guardian, British universities urged the government to reintroduce the PSW visa to allow overseas students to remain in the country and work for up to 2 years after graduation. They explained that universities would be in danger of losing their position as world leaders in international education if the government did not revise the abolition of the PSW visa, and asserted that the UK needed to make it clear to international students that they are welcome in the UK.

The paper now analyses this implementation process to assess whether the PSW visa, its abolition, and subsequent reinstatement achieved the desired objectives. In so doing, it focuses on a variety of published resources, such as the (IPPR, 2012) international students report, the UK report on net migration, higher education institution publications, home office reports on visas issued for international students from 2005 to 2010 by country, and the MAC reports issued in 2018.

With respect to the PSW visa, the UK coalition government made a number of changes to student visas and the requirements regarding 'sponsoring institutions' during the implementation phase, which had the effect of reducing the number of international students coming to the UK, along with the length of their stay (MAC, 2018a). Only graduates with an offer of a skilled job from a sponsoring employer would be allowed to remain, provided they apply for a Tier 2 visa (the employer sponsorship visa). Because the government pursued a top-down approach, which meant that the strategic initiatives of other policy subsystems besides central decision makers were neglected (Hjern and Hull, 1982), (PSW) visa removal was implemented without considering the financial effect this policy would have on UK higher education institutions, and on the social composition and diversity of international students.

Conversely, it can be argued that the 2021 policy reversal reinstating the PSW visa was driven from the bottom up by the higher education sector itself, as reintroducing the PSW visa in 2020 was a decision made by the UK government that paid attention to the views and roles of higher education institutions, as evidenced by Migration Advisory Committee (MAC) reports in 2018 on international students in the UK, newspapers, journals, and public labour.

In the last phase of the model, policy assessment entails determining if the objectives of the policy's creation, decision-making, and execution have been met. Nevertheless, there is little information to assess the elimination of the post-study work visa (PSW) policy in the UK in terms of student enrolment, economic impact, and the allure of UK institutions for students of various countries (UK Government, 2021). To improve this assessment, comprehensive information on these subjects is important. A few examples of the information that might be included in the review are statistics on the number of international students studying in the UK before and after the policy change, economic analyses of the effects of these changes, and surveys or studies assessing the attractiveness of UK institutions following the policy change. If policymakers take this data into account, they will be better equipped to understand the impact of the policy change and make future choices (UK Government, 2021).

In the case of the 2012 PSW visa abolition, its negative consequences for the HE sector and wider economy became evident over subsequent years. Specifically, it had a detrimental impact on international student recruitment to UK universities and consequently on the financial contribution of higher education to the UK economy. These effects were compounded by the outcome of the Brexit referendum in 2016 and the subsequent COVID-19 pandemic in 2020. Before the UK decided to leave the EU, students from within the European Economic Area (EEA) had been able to study in the UK without any restrictions on their stay or on whether they worked both during and after their period of study (MAC, 2018b). After 2020, their status was reclassified as ‘overseas’, which meant they were subject to the same restrictions and lack of PSW visa as other international students, resulting in a 50% drop in EU recruitment to UK universities (THE, 2022). This placed some of these students at significant financial risk. Another unforeseen factor in the evaluation of the PSW visa abolition policy has been the COVID-19 pandemic, which affected more than half of the world’s students (University World News, 2020). The UK’s HE sector faced an enormous challenge in recruiting and retaining international students as travel was restricted and numerous universities suspended teaching on campus during 2020–21, resulting in around one-third of international undergraduates starting or continuing their degree online in their home country (University World News, 2020).

In response to the negative effects and their unforeseen amplifications, the HE sector has successfully mobilised support and lobbied the government to recognise the multiple benefits of the income generated by international students, for example, in providing vital support for research departments and assisting in improving university facilities. On a wider scale, it also increases overall tax income in the UK. In September 2018, as part of a fresh agenda setting phase, the Migratory Advisory Committee (MAC, 2018a) called for evidence on the social and economic impact of international students in order to re-assess the policy of abolishing the (PSW) visa. They received extremely positive responses to support re-establishing the visa from across the HE and FE sectors, including the Association of Colleges (AoC) survey of international activity in colleges, which reported that the combined international (non-EU) and EU college income for 2016/17 was nearly £57m, plus additional spend in the local economy through expenditure on housing, transport, and food (MAC report, 2018b).

The HE sectors argued that re-establishing the (PSW) visa would have a positive impact on the learning environment, home students, research, and employment. Universities recruit thousands of people across the country from the UK and internationally in categories as diverse as academic and administrative staff and their direct activities generate and deliver taxes to the Exchequer (MAC, 2018a).

The Brexit decision also forced the UK government to reassess international student policy in the UK, as it affected the mobility of highly skilled people between the EU and the UK, prompting a shift towards other markets as part of a bid to become ‘Global Britain’. In 2018, the Higher Education Policy institute and Kaplan International Pathways estimated the economic impact of a typical EU-domiciled undergraduate to be approximately £87,000, with a comparable estimate for a non-EU-domiciled undergraduate of £147,000 (HEPI, 2022). This meant that in reviewing the PSW visa policy, consideration needed to be given to recruiting international students to replace lost revenue from EU students. Brexit was one of the main reasons for re-assessing the PSW visa, but the impact of the COVID-19 pandemic on the mobility of international and EU students and university finances was another significant driver for considering re-establishing PSW.

Based on the collected evidence of the MAG report and widespread lobbying from HEIs across the UK, the UK government announced that a new Graduate Route would open from 1 July 2021, enabling international students to work or look for work following their studies for a maximum

period of 2 years, or 3 years for doctoral students (UK Government, 2021). The new route, part of the post-Brexit points-based immigration system, is part of the UK's Global Britain message which aims to attract the 'best talent from around the world'. At the moment, the available information confirms that a number of favourable outcomes have been achieved in connection with the redeployment of Post Study Work Visas (PSW) back into the Graduate Route. According to a report by the Higher Education Statistics Agency (HESA, 2021), there has been a noticeable increase in the number of overseas students who chose to pursue their studies in the United Kingdom since the reintroduction of the PSW visa. Due to the growth in PSW visas, the graduate route has become very attractive for international students and made the UK institutions profitable. One of the main reasons students choose to study in the United Kingdom is that they have access to a residence visa, which provides them with an immediate career path towards staying and working in the UK even after graduation. Furthermore, the accommodation costs, general expenses and tuition fees that students pay, will have a positive impact on the UK economy. In addition, the prospect of these students continue to work and stay in the UK after completing their studies, will have additional positive impact on the UK economy as a result of the re-introduction of the PSW visa. Furthermore, the local businesses will benefit from this by increasing the overall economic growth.

The Graduate Route provides more chances for overseas students to finish their coursework and obtain job experience in the UK (UK Government, 2021). Their employability aspects in the UK and in their home countries can both be improved by this experience. Students can acquire different skills that increase their competitiveness in the global job market by working in the UK. This influx of international talent is not only enhancing the educational environment but also has a significant impact on campus multiculturalism and global outlook. Therefore, the UK universities would see improvements in their ranking and reputation abroad which could allow them to attract more distinguished students from a wide variety of backgrounds.

Apart from immediate benefits, there are also long-term benefits to the reintroduction of the PSW visa. The promotion of creativity and innovation in the academic environment is one such advantage (UK Government, 2021). A more dynamic and innovative learning environment is fostered by the graduate route, which welcomes students from a variety of cultural and educational backgrounds. While this has immediate benefits towards the students, it is also probable that the social consequences of such a development would be more pronounced because these students are expected to develop an increased degree of innovation in their professional lives both at home and abroad (Hepi 2022).

In addition, students are encouraged to collaborate globally and communicate across multicultural borders through the graduate route. Through interactions with fellow students from different countries, students acquire key intercultural communication and teamwork skills. In today's globalized society, these skills are of vital importance. These skills are of particular benefit to people and the development of an increasingly internationalised workforce, encouraging international cooperation in a number of areas. The PSW in turn increased the total number of students, multiplied the income of the universities, provided employment to students and raised the overall profile of the UK abroad. The policy change has contributed towards the promotion of innovation, cross-cultural communications, and international help. By attracting a diverse range of students, the Graduate Route may foster a more vibrant and innovative academic environment that benefits both students and society at large (UK Government, 2021). The graduate has therefore allowed students to come to the UK from all over the world. Universities were able to see an overall improvement in their position and also that so many students were coming to the UK to study. Moreover, there were long-term advantages as well because of the UK visas such as increased creativity, cross-cultural

communication, and international help that helped the universities to improve overall market standards.

Finally, evidence shows that there are several significant benefits to be gained from reintroducing the PSW visa via a graduated route such as increased student enrolment rates, financial gains, better employability, UK university competitiveness and longer-term benefits of increasing creativity and cooperation with countries around the world.

What is currently missing

There is as yet no evaluation of the reinstatement of the PSW visa. There has as yet been no formal evaluation of the reinstatement of the PSW visa. It is only through a future assessment that a clear picture can be obtained as to whether the reinstatement of the policy has achieved its targets.

Conclusion and recommendation

In conclusion, the UK government abolished the PSW visa in 2012 because of national security concerns and perceived public opposition to immigration but minimised the role of higher education institutions and failed to consider the economic and cultural drivers when setting the policy agenda. The impact of the subsequent top-down approach to implementation led to a range of negative outcomes for HEIs and on their contribution in the UK economy. Subsequently, bottom-up pressure led to re-establishing the PSW visa for economic reasons, and political reasons. This involved taking into consideration the views of the Migration Advisory Committee and representatives from HE and FE sectors. Regarding the stated aim of the abolition in 2012, which was to prevent abuse of the student immigration system, this may have been largely met but has subsequently been superseded by the imperative to increase international student recruitment and improve the financial situation for UK universities and the entire UK economy. However, because the PSW visa is now in the process of being re-established, evaluation of this further policy shift is premature and can be recommended as a topic for further research.

Declaration of conflicting interests

The author(s) declared no potential conflicts of interest with respect to the research, authorship, and/or publication of this article.

Funding

The author(s) received no financial support for the research, authorship, and/or publication of this article.

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